

Govind v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 8 May 2018 · Writ-C No. 45876 of 2016 · **Writ disposed; consumer to object, licensee to decide under Supply Code**

HEADNOTE

The petitioner challenged a DVVNL checking report as false and alleged that no notice was given to object to the report or to any provisional assessment. Treating the writ as a pure billing dispute arising from the checking report, the Division Bench directed him to file an objection before respondent no. 2 within ten days and directed that officer to decide it under the U.P. Electricity Supply Code, 2005 and the rules framed thereunder within three weeks. The report was not examined on merits.

FACTUAL SUMMARY

Govind, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd., alleged that a checking report dated 28 October 2015 was served on him only when he visited the Executive Engineer's office in January 2016, that no notice was given to object to the report or to any provisional assessment, and that the report falsely recorded loads and consumption. The licensee filed a counter-affidavit supporting the checking report; the petitioner filed a rejoinder. After several listings for affidavits, the Division Bench heard the writ.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.5

checking-report billing dispute — objection before licensee

HOLDING

A writ questioning the correctness of a checking report is a pure billing dispute. The consumer is to file an objection before the concerned officer within ten days; that officer shall then decide the objection keeping the U.P. Electricity Supply Code, 2005 and the rules framed thereunder, within three weeks. The High Court does not examine the checking report on merits. ¶ 1

PRINCIPLE TAGS

relegate-to-statutory-remedy The petitioner challenged a DVVNL checking report as false and alleged that no notice was given to object to the report or to any provisional assessment. Treating the writ as a pure billing dispute arising from the checking report, the Division Bench directed him to file an objection before respondent no.. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE CHECKING REPORT AND THE LOADS RECORDED THEREIN

Left to be decided on the consumer's objection under the Supply Code. ¶ 1

NOT DECIDED — WHETHER NOTICE WAS ISSUED TO OBJECT TO THE CHECKING REPORT OR THE PROVISIONAL ASSESSMENT

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